

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 7/1/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
3	30-2026-01565351 Regency Palms, LP vs. Riccobono	The Court has read and considered Plaintiff's Motion to Deem the Truth of the Matters Specified in Plaintiff's Request for Admission, Set No. (1), Admitted and Conclusively Established (ROA 69). IT IS ORDERED that the Plaintiff's Motion to Deem the Truth of the Matters Specified in Plaintiff's Request for Admission, Set No. (1), Admitted and Conclusively Established is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admission, propounded by Plaintiff and served on Defendant Donna Riccobono on May 21, 2026, be deemed admitted. The Court orders the Defendant, Donna Riccobono, forthwith to pay a sanction in the amount of \$176.58 to Plaintiff's Counsel. Given the Defendant's court-approved fee waiver information and the Defendant's disability status, in the interest of justice and equity, the Court will not impose monetary sanctions at the rate requested by the Plaintiff. This sum shall be made payable to "SNS Law Group, LLP" within 5 business days of service of this order and shall be delivered via mail to the SNS Law Group, LLP, 12100 Wilshire Blvd., Suite 1420, Los Angeles, CA 90025. If any party is required

		to further enforce the terms herein, the party enforcing this Judgment shall be entitled to further attorney's fees and costs. The Court Orders Plaintiff to provide notice of the Court's ruling.
4	30-2026-01569981 Park Vista, LTD. vs. Faris	The Court has read and considered the Plaintiff's Motion to Deem Request for Admission, Set One Admitted as to Julie Faris and Jerome Skinner (ROA 38). IT IS ORDERED that the Plaintiff's Motion to Deem Request for Admission, Set One Admitted as to Julie Faris and Jerome Skinner is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admission, propounded by Plaintiff and served on Defendant's Counsel Jacob O. Partiyelli on June 8, 2026, be deemed admitted. The Court orders Defendant's Counsel, Jacob O. Partiyelli, forthwith to pay a sanction in the amount of \$1,185 to Plaintiff's Counsel. This sum shall be made payable to "Kimball, Tirey & St. John, LLP" within 5 business days of service of this order and shall be delivered via mail to Kimball, Tirey & St. John, LLP, 2040 Main Street, Suite 500, Irvine, CA 92614. If any party is required to further enforce the terms herein, the party enforcing this Judgment shall be entitled to further attorney's fees and costs. The Court Orders Plaintiff to provide notice of the Court's ruling.
5	30-2026-01567683 Tran vs. Kim	The Court has read and considered the Defendant's Motion for Continuance of the Court Trial and Related Dates (ROA 36) and Declaration re Ex Parte Notice (ROA 37). The Court GRANTS the continuance request to coincide with the unlimited civil action 30-2026-01566561-CU-OR-CJC, which has before it a Motion to Consolidate requesting that the Orange County Superior Court consolidate this unlawful detainer case with that unlimited civil action due to the issues being litigated regarding title interest to the premises property which is the subject of this unlawful detainer. The Court sets a case management conference for August 19, 2026 at 8:30 AM in C61 regarding the status of the motion to consolidate and a Court Trial date of August 24, 2026 at 8:30 AM in Department C61. The Court vacates the July 9, 2026, court trial date. The Defendant is ordered to provide notice of the Court's ruling.
6	30-2026-01576055 Suzanna Weber Echevarria As Trustee Of The Suzanne Weber Echevarria Living Trust vs. Lee	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 12). The Court GRANTS the Motion to Quash Service of Summons. No proof of service has been filed with the Court regarding service of the summons and complaint on the Defendant.

		The Court Clerk is to provide notice of the Court's ruling.
7	30-2026-01565947 Tarbell vs. Estate of Eugene Gorny	The Court has read and considered: (1) Defendant Kyle Gorny's Motion to Quash Service of Summons (ROA 43); (2) Defendant Alyssa Gorny's Demurrer to Complaint (ROA 27); and (3) Defendant Adam Gorny's Demurrer to the Complaint (ROA 26). The Court takes Judicial Notice of the Complaint (ROA 2), Application to Serve Summons by Posting -Unlawful Detainer (ROA 9) and the 6/26/2026 Minute Order (ROA 55). As to the Motion to Quash Service of Summons by Kyle Gorny, the Court GRANTS the motion to quash service. The Complaint (ROA 2) attached an email from Kyle Gorny to Plaintiff's counsel dated March 19, 2026, that Kyle Gorny had not resided at the premises since approximately 2013 and he was only listed as an occupant on the 2012 lease. The Court would note that the residential lease agreement dated 6/7/2012, attached to the Complaint, states that the premises are for the personal residence of Eugene R. Gorny Jr. and "children Kyle, Adam and Alyssa." Plaintiff's counsel was on notice prior to submitting the Application to Serve Summons by Posting with the Court on 5/16/2026 that Kyle Gorny did not reside at the address and posting and mailing were not likely to lead to actual notice of the proceedings to Kyle Gorney. As to the Demurrer to the Complaint filed by Adam and Alyssa Gorny, the Court SUSTAINS the Demurrer. Plaintiff fails to attach to the Complaint a true and correct copy of the 3-day notice to quit, seeks to recover past due rent but does not indicate in the complaint that a 3-day notice to pay rent or quit was served on the Defendants, and fails to state the specific subpart supporting why tenancy is exempt from the Tenant Protection Act of 2019. Plaintiff is granted leave to amend the complaint within 5 days of the Court's ruling. The Court strikes the Order to Serve Summons by Posting (ROA 11). Plaintiff is ordered to serve each named Defendant pursuant to the applicable code sections and provide proof of service of the Amended Complaint on each Defendant. Possession is no longer at issue in this matter. The Court Clerk is to provide notice of the Court's ruling.
10	30-2026-01570325 Kimble, Drivdahl & Turtzer, LLC vs. Hernandez	The Court has read and considered the Defendants' Demurrer to the Complaint (ROA 12) and the Plaintiff's Opposition (ROA 24). Defendants contend that Plaintiff failed to serve a valid notice to perform covenants or quit as required by California Code of Civil Procedure section 1161(3), and therefore request that the Court sustain the demurrer without leave to amend.

	The Court finds that, within the four corners of the complaint, the pleading is facially sufficient. Defendants' remaining arguments—specifically, whether Mr. Michael Burns is required to complete a caregiver addendum in order to reside at the property—raise factual and legal disputes that go to the merits of the action. Such issues are not properly resolved on demurrer.. The Court OVERRULES the demurrer, and the Defendants are ordered to file an answer within 5 business days. The Plaintiff is ordered to provide notice of the Court's ruling.
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